



COLLABORATION AGREEMENT

BETWEEN

KWARA STATE GOVERNMENT

AND

IHS (NIGERIA) LIMITED



THIS COLLABORATION AGREEMENT IS DATED THIS 1ST DAY OF JANUARY 2025 (“EFFECTIVE DATE”).

BETWEEN

KWARA STATE GOVERNMENT represented by the Managing Director of Ilorin Innovation Hub whose office is located at Ahmadu Bello Way, G.R.A Ilorin, Kwara State (hereinafter referred to as “**KWSG**”, which expression shall where the context so admits, include its successors-in-title and assigns) of the first part;

AND

IHS (NIGERIA) LIMITED, a limited liability company registered under the laws of Nigeria and having its registered office at Plot 934 Idejo Street, Victoria Island, Lagos State (hereinafter referred to as “**IHS**”, which expression shall where the context so admits include its successors-in-title, assigns and Affiliates) of the second part.

IHS and **KWSG** shall individually be referred to as a “**Party**” and collectively as the “**Parties**”.

WHEREAS:

- a. The Parties have entered into a Memorandum of Understanding dated 17th November 2023 (the “**MoU**”) to memorialize their intention to collaborate with respect to the construction of a technology innovation facility located at Ilorin, Kwara State (“the **Hub**”) and the curation and execution of programs to stimulate and deepen technology and services innovation, entrepreneurship, investment and job creation (“the **Programs**”) in Kwara State and across Nigeria (“the **Project**”).
- b. The Parties have agreed to incorporate the Project Company (as hereinafter defined) for the implementation of the Project.
- c. The Parties now enter into this Agreement to for the purpose of regulating their respective and collective relationships with the Project Company as well as set forth the specific terms and conditions on which they will collaborate for the execution of the Project.

NOW THEREFORE, in consideration of the mutual agreements and covenants contained herein and intending to be legally bound thereby, the Parties agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 DEFINITIONS

In this Agreement, the words and expressions defined below shall have the meanings ascribed to them, except where the context requires otherwise:

“**Act**” shall mean the Companies and Allied Matters Act, 2020 (as amended or replaced from time to time).

“**Affiliate**” of a Party, means with respect to such Party, an entity that directly or indirectly, through one or more intermediaries, controls, is controlled by, or is under common control with, such Party; provided, however, that in the case of IHS, the term shall mean INT Towers Limited, IHS Towers NG Limited, Global Independent Connect Limited and any other Affiliate of IHS duly communicated in writing to KWSG by IHS. For the purpose of this definition, “Control” (including the terms “controlled,” “controlled by” and “under common control with”) means the possession, directly or indirectly or as trustee or executor, of the power to direct or cause the direction of the management



policies of a Party, whether through the ownership of stock, as trustee or executor, by contract, credit arrangement or otherwise.

“Agreement” means this collaboration agreement, its annexures, schedules, and appendices, and includes any amendments and/or supplements thereto made in accordance with the provisions hereof.

“Anti-Corruption Laws” shall have the meaning ascribed thereto in **Clause 9.3.1** of this Agreement.

“Applicable Law” means any statute, law, regulation, ordinance, rule, judgment, rule of common law, clearance, order, decree, bye-law, directive, guideline, policy, requirement or other governmental restrictions or any similar form of decision or determination by, or any interpretation or administrative order having the force of law of any of the foregoing by any government authority having jurisdiction over the matter in question in Nigeria.

“Business Day” means any day on which commercial banks are open for business in the Federal Republic of Nigeria;

“Confidential Information” includes without limitation, any technical, commercial, scientific information, know-how, trade secrets, business ideas, processes, machinery, designs, drawings, technical specifications, and data in whatever form, disclosed that concern or relate to a Party, its business, operations, styles of work or any other information that may be acquired by the other Party in relation to this Agreement and including the existence and terms of this Agreement.

“Effective Date” shall have the meaning ascribed thereto in the preamble to this Agreement.

“Force Majeure Event” means any event which is beyond a Party's reasonable control including by way of indication (but not as an exhaustive list) the events specified below, but in all cases insofar as the relevant events reasonably prevent the impacted Party from performing all or part of its obligations under this Agreement:

- a. any revolution, riot, invasion or war (whether declared or otherwise), act of terrorism, uprising, sabotage or action by a public enemy;
- b. any act of God (including storm, flood, hurricane, earthquake or other natural disaster); and
- c. any acts by military, police or civil authorities (whether national, local or foreign), *provided that* in all cases, the Party whose performance is affected has taken all steps as may reasonably be expected to have been taken in order to prevent such act or event from occurring or impacting the performance of its obligations.

“Governing Board” shall have the meaning given in **Clause 4.5** of this Agreement.

“Hub” shall have the meaning ascribed thereto in **paragraph a** of the recitals to this Agreement.

“Hub Construction Cost” shall mean all costs associated with procuring the services and materials required for the construction, finishing, and furnishing of the Hub.

“Hub Programs” shall have the meaning given in **Clause 4.42b** of this Agreement.



“**IHS Contribution**” shall mean the amount to be contributed by IHS in **Clause 4.30(b)**; and, the amount to be contributed by IHS in **Clause 4.35(a)**.

“**IHS Intellectual Property**” shall have the meaning ascribed thereto in **Clause 19.7** of this Agreement.

“**IHS Program**” shall have the meaning given in **Clause 4.42 (a)** of this Agreement.

“**IHS Team**” shall have the meaning given in **Clause 4.43** of this Agreement.

“**Lock-in-Period**” means **five (5)** years commencing from the Effective Date.

“**Management Budget**” shall have the meaning given in **Clause 4.33** of this Agreement.

“**Management Team**” shall have the meaning given in **Clause 4.32** of this Agreement.

“**MemArts**” shall mean the memorandum and articles of association.

“**Pre-Existing Intellectual Property**” shall have the meaning ascribed thereto in **Clause 19.7** of this Agreement.

“**Project**” shall have the meaning ascribed thereto in paragraph a of the recitals to this Agreement.

“**Project Company**” shall mean Ilorin Innovation Hub Ltd/Gte, a company limited by guarantee to be registered under the laws of Nigeria.

“**Project Land**” shall mean the property measuring approximately 13,500 square metres located at Ahmadu Bello Way, GRA, Ilorin, Kwara State.

“**Project Manager**” shall have the meaning given in **Clause 4.28** of this Agreement.

“**Specified Period**” shall mean an initial period of **ten (10) years** from the Effective Date and such further periods as agreed by the Parties..

“**Tax**” means all applicable taxes, duties and levies payable to the relevant Governmental Authority in respect of this Agreement.

“**Term**” shall have the meaning given in **Clause 2** of this Agreement.

“**Trade Authority**” shall have the meaning ascribed thereto in **Clause 8.2.3** of this Agreement.

1.2 INTERPRETATION

1.2.1. Words importing the singular shall include the plural and vice versa, and words denoting natural persons shall include partnerships, firms, companies, corporations, unincorporated bodies, joint ventures, trusts, associations, organizations or other entities (in each case, whether or not having separate legal personality);

1.2.2. The headings are for convenience of reference only and shall not be used in, and shall not affect the meaning, construction, interpretation or scope of this Agreement or the provisions it relates to;



- 1.2.3. The words “include” and “including” are to be construed without limitations;
- 1.2.4. Any reference to; day, month or year shall mean a reference to a calendar day, 30 days or 365 days respectively, unless otherwise specified;
- 1.2.5. The schedules and appendices to this Agreement form an integral part of this Agreement as though they were expressly set out in the body of this Agreement. In case of any discrepancy between the schedules and appendices and the body of the Agreement, the latter shall prevail;
- 1.2.6. Any reference at any time to any agreement, deed, instrument, license or document of any description shall be construed as reference to that agreement, deed, instrument, license or other document as amended, varied, supplemented, modified or suspended at the time of such reference;
- 1.2.7. References to recitals, clauses, sub-clauses or schedules in this Agreement shall, except where the context otherwise requires, be deemed to be references to recitals, clauses, sub-clauses and schedule of or to this Agreement;
- 1.2.8. The expression “this Clause” shall, unless followed by reference to a specific provision, be deemed to refer to the whole clause and not merely the subclause, paragraph or other provision, within which the expression falls;
- 1.2.9. The expression “in writing” includes any communication made by letter or email to the recipient’s email address;
- 1.2.10. Unless otherwise defined, words or terms used in this Agreement shall have their literal English meanings. Where any inconsistency between or among different language versions of the counterparts exists, the English language version shall prevail;
- 1.2.11. Any agreement, consent, approval, authorization, notice, communication, information or report required under or pursuant to this Agreement from or by any Party shall be valid and effectual only if it is in writing under the hands of duly authorized representatives of such Party on its behalf and not otherwise;
- 1.2.12. Any reference to any period commencing “from” a specified day or date and “till” or “until” a specified day or date shall include both such days and dates; and
- 1.2.13. Any reference to any statute, statutory provision or statutory instrument shall include any re-enactment or amendment thereof for the time being in force.
- 1.2.14. The terms of this Agreement having been negotiated, no provision herein shall be construed against or interpreted to the disadvantage of any Party by reason of such Party having or being deemed to have structured, drafted or introduced such provision. Accordingly, the rule of interpreting a document or provision strictly against the maker shall not apply in this regard.
- 1.2.15. If any provision in a definition is a substantive provision conferring rights or imposing obligations on any Party, then, notwithstanding that it is only in a definition, effect shall be given to that provision as if it were a substantive provision in the body of this Agreement.
- 1.2.16. Where any term is defined within a particular clause, other than the definition or interpretation clause, that term shall bear the meaning ascribed to it in that clause wherever it is used in this Agreement.
- 1.2.17. Subject to any express provision to the contrary, this Agreement shall be binding on and enforceable by or against the successors-in-title, estate, heirs, executors, administrators, trustees, permitted assigns or liquidators of the Parties as applicable, as fully and effectually as if they had signed this Agreement in the first instance and reference to any Party shall be deemed to include such Party’s successors-in-title, estate, heirs, executors, administrators, trustees, permitted assigns or liquidators, as applicable.



2. COMMENCEMENT AND DURATION

- 2.1 Subject to Clause 2.2, this Agreement shall become effective on the Effective Date and shall be valid and remain in full force, operation, and effect until either of the following events occurs (the “Term”):
 - 2.1.1 Where the Project Company is dissolved; or
 - 2.1.2 Where this Agreement is terminated in accordance with clause 16 hereof.
- 2.2 Notwithstanding the Effective Date, the Parties hereby approve and ratify all the actions taken in connection with the construction of the Hub following the execution of the MoU.
- 2.3 Following the incorporation of the Project Company, the Parties shall procure that the Project Company accedes to the terms of this Agreement and fulfils the obligations imposed on it thereunder.

3. SCOPE OF COLLABORATION

- 3.1 The Parties hereby agree to establish a joint venture for the implementation of the Project.
- 3.2 Subject to the terms and conditions of this Agreement, the Parties shall collaborate in the manner, and shall perform their respective obligations, as set out below:
 - 3.2.1 Each Party shall use its best efforts, skill, and dedication to fulfil its obligations under this Agreement and shall always be bound by fairness, sound judgment and good conscience in the execution of the Project and while dealing with the other Party.
 - 3.2.2 Each Party shall cooperate with the other Party’s reasonable requests for assistance and take such further steps and execute such further documents necessary to give effect to this Agreement.
 - 3.2.3 The Parties shall make diligent efforts to identify the cause of any conflict during the Term and take such necessary steps to resolve such conflict.
 - 3.2.4 The Parties shall at all times comply with all Applicable Laws and regulations relating to and affecting each of them, and the Project, throughout the Term.
- 3.3 In furtherance of Clauses 3.1 and 3.2, the Parties agree to put in place the corporate structure and commercial arrangements in Clause 4 (and such other transactions detailed in this Agreement), subject to the terms and conditions of this Agreement, in order to give effect to the joint venture.

4. PROJECT COMPANY STRUCTURE AND GOVERNANCE

Incorporation of Project Company

- 4.1 The Parties hereby agree to incorporate the Project Company as soon as reasonably possible after the Effective Date.
- 4.2 The sole business of the Project Company will be the ownership and operation of the Hub.
- 4.3 As part of the incorporation process, the MemArts of the Project Company shall be prepared in a manner that incorporates the provisions of this Agreement.
- 4.4 The Parties acknowledge and agree that they will both subscribe to the membership of the Project Company at incorporation provided that the Project Company may admit additional members if agreed in writing by both Parties.



Governing Board of Project Company

- 4.5 The Parties agree that the board of directors of the Project Company shall be responsible for the operation, maintenance and management of the Hub ("**Governing Board**").
- 4.6 The Governing Board shall consist of eleven (11) persons, six (6) of which shall be nominated by KWSG ("**KWSG Nominees**") and five (5) of which shall be nominated by IHS ("**IHS Nominees**").
- 4.7 Each Party shall notify the other of its nominations to the Governing Board in writing no later than five (5) days from the Effective Date and shall provide the names and contact details of such nominees as well as other information required to complete the registration of such nominees as part of the incorporation of the Project Company, provided that the Project Company can be incorporated with two or more nominee directors representing both Parties with the other directors to be registered upon receipt of relevant information.
- 4.8 The members of the Governing Board shall appoint one of their members as Chairman of the Governing Board who shall occupy the position for a single term of three (3) years only, following which another person will be appointed.
- 4.9 The Parties may, subject to compliance with all applicable laws, in their sole discretion replace their nominees on the Governing Board by notice to the other Party.
- 4.10 Notwithstanding the provisions of Clause 4.9, the Parties, as members of the Project Company, may remove any director by ordinary resolution. The Party who nominated for appointment any director, who has been removed pursuant to this Clause 4.10, shall be entitled to nominate another director in his or her place. The other Party shall accept and recognize such Party's replacement nominee as a director, in accordance with the provisions of this Agreement.
- 4.11 Each Party will be entitled to appoint (or remove, if it so desires) an alternate director to its directors and such alternate director may (unless he or she is already a full director) only be entitled to attend Governing Board meetings in the absence of the director to which he or she is an alternate, and the Parties undertake that such alternate directors shall participate in proceedings and exercise voting rights which the substantive directors would normally exercise/execute.
- 4.12 The Parties shall ensure that their respective nominees on the Governing Board shall facilitate the performance of their respective obligations under this Agreement.

Proceedings of the Governing Board

- 4.13 The Governing Board shall hold its meetings at least two (2) times per annum.
- 4.14 The venue of the meetings of the Governing Board will be at the Hub or such other venue as the directors may agree. The directors may, if they think fit, confer by radio, telephone, closed circuit television or other electronic means of audio or audio/visual communication and a resolution passed by such a conference shall, provided such resolution is recorded in writing thereafter. Notwithstanding, where the directors are not present together in one place at the time of a conference, any resolution so passed or agreement reached, shall be deemed to have been passed or agreed at the meeting of the directors held on the day on which and at the time at which the conference was held. The provisions of this Agreement relating to the proceedings of directors apply so far as they are capable of application and, mutatis mutandis, to such conference.
- 4.15 Each member of the Governing Board shall be entitled to no less than five (5) Business Days' notice of any meeting of the Governing Board.



- 4.16 Each meeting of the Governing Board shall require a quorum of at least seven (7) persons, consisting of at least three (3) IHS Nominees and four (4) KWSG Nominees, present failing which the meeting shall be adjourned to the next Business Day. Those present at the adjourned meeting shall be deemed a quorum provided there is at least two (2) IHS Nominee and two (2) KWSG Nominee present otherwise, the meeting shall be postponed to the next Business Day until such time as there is at least two (2) IHS Nominee and two (2) KWSG Nominee present.
- 4.17 All proceedings at meetings of the Governing Board shall be recorded by the company secretary of the Project Company in a minutes book and the company secretary shall within a reasonable time after each meeting, deliver to each of the directors a copy of the draft minutes of such meeting, setting out in full, any resolutions passed at such meetings. Each director shall sign and return to the company secretary a copy thereof. If any director does not agree with the draft minutes in respect of any meeting attended by him, he shall endorse the minutes with a note that the points are not agreed and record his comments with regard thereto on the minutes. The draft minutes will then be signed and returned to the company secretary and shall be considered at the next meeting of the Governing Board.
- 4.18 Each director shall have one (1) vote on all matters submitted to the Governing Board. The affirmative vote of the majority of directors shall be required to approve any proposed resolution.
- 4.19 A resolution in writing signed by all the members of the Governing Board for the time being of the Project Company shall be as valid and effective for all purposes as a resolution passed by the directors of the Project Company at a meeting duly convened, held and constituted.

Members Meeting

- 4.20 The Project Company shall hold meetings of members as required by the Act.
- 4.21 The quorum at meetings of members of the Project Company will be one (1) representative of each of the Parties, present in person, virtually or by proxy and provided that due and proper notice of the meeting (which must include an agenda) has been given to all the Parties.
- 4.22 All meetings of the members shall, unless otherwise agreed by the Parties, be held at the Hub.
- 4.23 In any vote by the members of the Project Company, each Party shall be entitled to exercise one (1) vote.

Project Land

- 4.24 KWSG hereby agrees to donate the Project Land to the Project Company for the Project.
- 4.25 KWSG undertakes that it shall within thirty (30) days following the incorporation of the Project issue relevant title documents in relation to the Project Land in the name of the Project Company.

Hub Construction

- 4.26 The Parties agree and acknowledge that the construction of the Hub on the Project Land, in accordance with the specifications set forth in **Schedule 1** of this Agreement, subject to such changes as may be agreed in writing by the Parties, is near completion.
- 4.27 The Hub Construction Cost has been jointly determined and approved by the Parties.
- 4.28 The Parties agree that IHS is entitled to and has appointed a construction project co-ordinator ("**Project Manager**") to facilitate the timely completion of the Hub construction.



- 4.29 The Parties shall meet from time to time as required to:
- a. review and determine the various elements of the Hub Construction Cost including but not limited to matters such as scope of works required, bills of quantities, vendor proposals and negotiations; and
 - b. determine and review the work plan and construction milestones for the completion of the Hub.
- 4.30 The Parties agreed to fund the Hub Construction Cost in the manner set forth below:
- a. KWSG shall fund the entire Hub Construction Cost less IHS Contribution; and
 - b. IHS shall contribute a minimum of **₦2,000,000,000.00 (Two Billion Naira)** only toward the Hub Construction Cost which shall be paid as required directly to the vendors for the Hub Construction on the recommendation of KWSG subject to the approval of the Project Manager
- and it is acknowledged that each Party has complied with its obligation in Clause 4.30.

Hub Maintenance and Management

- 4.31 The Parties hereby agree that IHS shall have an exclusive and indefeasible right to maintain and manage the Hub for the Specified Period, subject to oversight by the Governing Board. The right conferred on IHS in this clause shall be ratified by the Governing Board on behalf of the Project Company immediately following the registration of the Project Company.
- 4.32 In furtherance of Clause 4.31, IHS shall be entitled to appoint the management team for the Hub who shall (i) be employees of the Project Company; (ii) be responsible for the day to day running of the Hub; (iii) handle the accounting and other operational matters relating to the Hub; (iv) apply for and manage grants or donations on behalf of the Hub; and (v) be responsible for the co-ordination of all key stakeholders for the Project within and outside Kwara State ("**Management Team**").
- 4.33 The Management Team shall determine the operational, maintenance and management needs of the Hub as well as the budget required to meet such needs on an annual basis ("the **Management Budget**").
- 4.34 All Management Budgets shall be prepared by the Management Team subject to the approval of the Parties.
- 4.35 The Parties shall each contribute to fund the Management Budget on an annual basis throughout the Term in the manner set forth below:
- a. IHS shall contribute up to a maximum of **₦1,000,000,000 (One Billion Naira)** only per annum provided that disbursement of the IHS Contribution in this Clause shall be made in agreed periodic cycles.
 - b. KWSG shall contribute the balance of the Management Budget after the deduction of IHS Contribution.
- 4.36 Following the expiration of the Specified Period, the Governing Board shall determine whether or not to extend the exclusive management and maintenance rights vested in IHS under clause 4.31 and the terms of such extension.
- 4.37 Nothing in this Agreement shall preclude the Project Company from sourcing for grants/funding from domestic and international organizations for the promotion of the Project and the Programs.
- 4.38 The Parties shall have the right throughout the Term to conduct audits of the Management Budget and/or the Management Team and may request relevant information on a periodic or on-going basis therefore.

Ownership and Use of the Hub

- 4.39 The Parties agree that ownership of the Project Land, including the Hub, vests with the Project Company.



- 4.40 The Parties agree that throughout the Term of this Agreement, the members of IHS team shall be given exclusive and unfettered use of dedicated workspace within the Hub comprising office space for administrative activities on the ground floor of the Hub and open space and workstations on the top floor of the Hub. The IHS team and IHS Program participants shall also have access to all common areas.
- 4.41 All activities to be undertaken at the Hub shall be in alignment with the general principles of this Agreement and subject to advance notice to and collaboration with the Management Team.

The Programs

- 4.42 The following two streams of programs shall be run at the Hub (the “**Programs**”):
- a. Programs which shall be organized and managed by IHS (“**IHS Programs**”); and
 - b. Programs which shall be organized and managed by the Management Team (“**Hub Programs**”).
- 4.43 IHS shall at its cost and in its sole discretion decide on the curriculum of the IHS Programs and may appoint such number of persons as it deems necessary to manage and facilitate the IHS Programs (“**IHS Team**”). The schedule for the IHS Programs shall be shared with the Management Team annually in advance and any modifications and adjustments thereto shared quarterly in advance to optimize the use of available space within the Hub.
- 4.44 KWSG shall at its cost and in its sole discretion decide on the curriculum of the Hub Programs.
- 4.45 The Management Team shall be responsible for scheduling and managing the use of the space within the Hub for the Programs.

Branding and Marketing

- 4.46 The Parties shall collaborate on all branding and marketing activities for the Project.
- 4.47 IHS shall have the right on an exclusive basis to provide all physical branding of the Hub. Where such branding is in conjunction with a third party, KWSG's approval shall be required provided such approval shall not be unreasonably withheld.
- 4.48 Any physical branding of the Hub by KWSG shall be subject to the prior receipt of a written notice of no objection from IHS.
- 4.49 The Parties shall agree on all communications pertaining to this Agreement before public release.

5. BENEFICIARIES

Nothing contained in this Agreement shall give or allow any claim or right of action whatsoever by any third person other than as stated in this Agreement. It is the express intention of the Parties that any such person or entity other than as referred to in this Agreement receiving any services or benefits under this Agreement shall be deemed an incidental beneficiary only and as such, no such person shall have any right to enforce any term of this Agreement.

6. REPRESENTATIONS AND WARRANTIES

Each Party hereby represents and warrants that:

- 6.1 Each Party validly exists under the laws of the Federal Republic of Nigeria.
- 6.2 It has full capacity and authority to enter into and to execute the provisions of the Agreement.
- 6.3 This Agreement is executed by its duly authorised representatives.



- 6.4 Once duly executed, this Agreement will constitute a legal, valid, and binding document, enforceable upon its terms.
- 6.5 This Agreement is not in violation of or conflict with the terms of any other agreements entered into by it.
- 6.6 There are no material actions, suits or proceedings or regulatory investigations pending, or to the knowledge of such Party, threatened against it or any of its Affiliates that might adversely affect the ability of the Party to meet and carry out its obligations under this Agreement.
- 6.7 It has performed and will continue to perform all reasonable and necessary due diligence for the purpose of carrying out the Project in this Agreement.

7. RELATIONSHIP BETWEEN THE PARTIES

- 7.1 Nothing in this Agreement shall be deemed to create any relationship beyond that contemplated by the Parties and herein expressly stipulated and agreed. The Parties expressly acknowledge that nothing in this Agreement shall be construed as creating a partnership or principal-agency relationship in respect of any existing or future business, except as expressly provided herein.
- 7.2 IHS shall not, by reason of entering into this Agreement, be precluded by KWSG or any of its agents from conducting its normal administrative, commercial, technical or operational activities in connection with the general provision of its services to its customers.

8. TRADE LAWS, ANTI-TERRORISM AND ANTI-MONEY LAUNDERING

- 8.1. Each Party hereby represents, warrants, and undertakes to the other Party that neither the Party nor any of its directors, officers, employees, Affiliates or any third party retained by and/or representing it, (a) is the government of, resident in, located in, organized under the laws of, or subject to the jurisdiction of, any country or territory that is, or whose government is, the target of comprehensive economic or trade sanctions or restrictive measures under Applicable Laws, presently including the Crimea Donetsk and Luhansk regions of Ukraine, Cuba, Iran, North Korea, Syria, and the Government of Venezuela; (b) is designated on any sanctions list promulgated, administered, or enforced under Applicable Laws, including but not limited to, the U.S. Treasury Department's Specially Designated Nationals and Blocked Persons List; (c) is owned or controlled directly or indirectly by any party described any clauses (a) or (b); (d) is subject to a Denial Order by the U.S. Department of Commerce, Bureau of Industry and Security; or (e) is subject to any other restrictions that would preclude the Party from dealing with the other Party.
- 8.2. Each Party hereby confirms that:
 - 8.2.1. It shall not (neither shall any of its directors, employees or agents) directly or indirectly engage in, promote or assist and/or facilitate any form of terrorist group or person who engages in or promotes or supports, any form of terrorist activity whatsoever.
 - 8.2.2. It shall ensure that it complies with anti-money laundering and anti-terrorism laws, laws and regulations on sanctions or embargoes, restricted party lists trade controls on the import, export, re-export, transfer or otherwise trade of goods, services, software, or technology of Nigeria, including those of any jurisdiction in which IHS operates, or where its Affiliate(s) operates, including, but not limited to, the European Union, the United Kingdom and the United States of America and other Applicable Laws. Each Party further confirms that it has in place and undertakes to maintain sufficient internal structures and



processes to ensure such compliance and to track, prevent and detect the violations of these laws.

- 8.2.3. It shall, if any of the obligation hereunder requires a license, permit, or other authorization from any sanctions or export controls governmental or regulatory authority, including but not limited to, the Federal Republic of Nigeria, U.S. Treasury Department and the U.S. Commerce Department (collectively, **"Trade Authority"**), prior to the direct or indirect obligation, (a) apply for and secure all necessary licenses, permits, or other authorizations from the relevant Authority; (b) provide written notice to the Party of any end-user, end-use, or other applicable conditions issued by a Trade Authority as part of any necessary license, permit or other authorization received from a Trade Authority; and (c) provide written notice to the other Party to identify all items subject to a license, permit, or other authorization.
- 8.2.4. It shall ensure that none of its agents, directors or officers (as applicable) has been the subject of an investigation, settlement or conviction for applicable anti-money laundering and anti-terrorism, sanctions and export controls laws and regulations.
- 8.2.5. It shall immediately upon discovery or reasonable suspicion, send the other Party a written notification of an incident or suspicion of the involvement of that Party, it's agents, directors, officers, employees , Affiliates, or any third party retained by it/representing it is in violation of applicable anti-money laundering and anti-terrorism, sanctions and export control laws and regulations in connection with the Project that the Party provides to the other Party or vice versa.
- 8.2.6. Prior to the direct or indirect provision of any hardware (including tooling), software, or technology (collectively, **"Items"**) by either Party to the other Party, each Party shall provide a written notice of any Items that are **"Restrictively Controlled"** under any applicable export control laws, including U.S. export control laws administered under the U.S. Export Administration Regulations (**"EAR"**) or EU export control laws administered under the EU Dual-Use Regulation 428/2009. Items are "Restrictively Controlled" if they are (a) subject to the EAR, excluding Items that are classified as EAR99, and further excluding Items classified under an export control classification number controlled only for anti-terrorism reasons; or (b) Items for which the direct or indirect provision to either Party or either Party's benefit requires a license, permit, or other authorization under any applicable export control laws.

9. ANTI-BRIBERY AND ANTI-CORRUPTION

- 9.1. Each Party hereby represents, warrants and undertakes that, as at the date of this Agreement, neither it nor any of its directors, officers, employees, Affiliates or any third party retained by and/or representing it, has offered, promised, given, authorized, solicited or accepted any undue pecuniary or other advantage of any kind (or implied that they will or might do any such thing at any time in the future) in any way connected with this Agreement, and that it has taken reasonable measures to prevent subcontractors, agents or any other third parties subject to its control or determining influence from doing so.
- 9.2. Each Party shall comply with all applicable anti-bribery and anti-corruption laws in Nigeria any relevant jurisdiction and (including those applicable in its jurisdictions of operation, the territory of the Project, the Foreign Corrupt Practices Act of the United



States of America and the Bribery Act 2010 of the United Kingdom and all applicable anti-bribery and anti-corruption regulations and codes of practice.

- 9.3. Each Party further represents, warrants, and undertakes to the other Party as follows:
- 9.3.1. That itself, its Agents and Affiliates, and anyone retained by and/or representing it, in each case has and will strictly adhere to and comply with all Applicable Laws, rules and regulations against bribery and corruption in the Federal Republic of Nigeria (including but not limited to local, regional and international anti-bribery and anti-corruption laws, such as the U.S. Foreign Corrupt Practices Act, the U.K. Bribery Act and any applicable legislation in any country where the Party or its Affiliates operates) (collectively, “**Anti-Corruption Laws**”), and that neither it nor any of its directors, officers, employees, Affiliates, agents, representatives or subcontractors have engaged in any activity or conduct that has resulted or will result in a violation of any Anti-Corruption Law.
- 9.3.2. That in connection with the terms of this Agreement, neither of the Party or any of its stockholders, employees or agents, representatives or subcontractors have offered, paid, promised to pay, or authorized the payment of any money or any other thing of value to (a) any Government Official or any one acting through a Government Official as that term is defined above, or (b) any other person while knowing that all or a portion of such money or anything else of value would be offered or given directly or indirectly to any official, political party, or to any candidate for political office for any of the prohibited purposes listed below.
- 9.3.3. For the purposes of **Clause 9.3.2** above, the prohibited purposes are:
- a. to influence an act or decision of such official, political party, party official or candidate in his official capacity;
 - b. to induce such official, political party, party official or candidate to do or omit to do any act in violation of the lawful duty of such party, official or candidate; or
 - c. to induce such official, foreign political party, party official or candidate to use his or its influence with a Government Official.
- 9.3.4. Each Party hereby confirms that:
- a. It shall ensure that none of its agents, directors and officers have been subject of an investigation, settlement, or conviction for violations of applicable bribery or corruption laws.
 - b. It shall immediately upon discovery or reasonable suspicion send the other Party a written notification of an incident or suspicion of the involvement of the Party, its agents, or Affiliates, directors and officers or any third party representing it in a violation of applicable bribery or corruption laws.

10. LIMITATION OF LIABILITY AND INDEMNITY

- 10.1. Nothing in this Agreement shall make either Party liable for any debt or other obligation of the Project Company, beyond the liability specified in the Act.
- 10.2. Neither Party shall be liable for any loss, damage or injury whatsoever and howsoever arising, incurred or suffered by the other Party or any third party caused by or arising from the other Party's performance of its obligations in terms of this Agreement, including without limitation, all consequential and special losses or damages, caused to that Party or any third party including that Party's directors, employees, agents, representatives, customers or to any other person whomsoever.

- 10.3. Each Party (the “**Indemnifying Party**”) hereby agrees to indemnify, defend, protect and hold harmless the other Party, its employees, officers, shareholders, directors, agents, contractors and Affiliates (the “**Indemnified Party**”) from and against, and assumes liability for, any and all claims, demands, actions, losses, damages, assessments, charges, limitation, interests, penalties, and attorney’s fees which may from time to time be suffered or incurred by, or asserted against the Indemnified Party directly or indirectly, on account of or in connection with any injury, death, loss or damage to any person, tangible or intangible property or facilities of any person or entity (including reasonable attorneys’ fees and costs at trial and appeal) to the extent arising out of or resulting from the negligence or willful misconduct of the Indemnifying Party, its officers, employees, servants, affiliates, agents or contractors or from any other person or entity for whom it is in law responsible. Nothing in **Clause 10.2** shall be construed as limiting the liability of any Party for personal injury or death resulting from the negligence of a Party or its employees.

11. **ASSIGNMENT**

- 11.1. This Agreement and the discussions between the Parties pursuant thereto are on an exclusive basis between the Parties.
- 11.2. No Party may assign the benefit under this Agreement or any rights or benefit thereof without the written consent of the other Party first having been obtained, such consent not to be unreasonably withheld.

12. **FORCE MAJEURE**

12.1. **Notice of Force Majeure Event**

As soon as practicable and in any case, within **twenty-four (24) hours** from the date of the occurrence of a Force Majeure event, or the date of knowledge thereof, the affected Party shall notify the other Party of the same in writing, setting out *inter alia*, the following in reasonable detail:

- 12.1.1 the nature and extent of the Force Majeure Event;
- 12.1.2 an estimate of the anticipated Force Majeure period;
- 12.1.3 the nature of and the extent to which performance of any of its obligations under this Agreement are affected by the Force Majeure Events;
- 12.1.4 the measures which the Party has taken or proposes to take to alleviate/mitigate the impact of the Force Majeure Event and to resume the performance of its obligations thereby affected;
- 12.1.5 any other relevant information concerning the Force Majeure event, and/or the rights and obligations of the Parties under this Agreement.

12.2. **Performance of Obligations**

If a Party is rendered wholly or partially unable to perform any of its obligations under this Agreement due to a Force Majeure event, it shall be excused from the performance of such obligations to the extent that it is unable to perform same on account of such Force Majeure Event, provided that:

- 12.2.1 due notice of the Force Majeure Event has been given to the other Parties as required under this Agreement;
- 12.2.2 the excuse from performance shall be of no greater scope and of no longer duration than is necessitated by the Force Majeure Event;
- 12.2.3 the affected Party has taken all reasonable efforts to mitigate or limit any damage that may be caused or is likely to be caused in relation to the performance of the Project as a result of the Force Majeure Event and to resume



the performance of the Project in accordance with Good Industry Practice and its obligations under this Agreement;

12.2.4 when the affected Party is able to resume the performance of its obligations under this Agreement, it shall give the other Party written notice to that effect and shall promptly resume the implementation of the Project; and

12.2.5 the affected Party shall continue to perform its obligations which are not affected by the Force Majeure Event and which are capable of being performed in accordance with the provisions of this Agreement.

12.3. The Parties hereby agree that where a Force Majeure Event persists for a period of **thirty (30) days or more**, the unaffected Party shall have the right to terminate the Agreement immediately upon giving written notice to the affected Party.

13. GOVERNING LAW AND DISPUTE RESOLUTION

13.1. This Agreement (and any non-contractual obligations arising out of or in connection with it) shall be construed and governed in accordance with the laws of the Federal Republic of Nigeria.

13.2. In the event of any difference(s) or dispute(s) arising out of the interpretation or application of the provisions of this Agreement, the Parties shall immediately consult each other with the view to expeditiously resolve such differences or disputes in the spirit of mutual understanding and cooperation.

13.3. If they are unable to resolve the dispute, an aggrieved party may refer the dispute to the appropriate court for resolution.

14. CONFIDENTIALITY

14.1. The Parties agree that any information exchanged between them, whether or not clearly marked as proprietary and/or confidential, shall be kept confidential and shall not be disclosed or given to any third party without the prior written permission of the Party that supplied the information. This understanding does not apply to information given to professional advisers (to whom the same confidentially obligations must be extended), information in the public domain, or to information required to be disclosed under any written law, an order of court, to a statutory regulator (provided that in all such cases, the receiving Party shall, unless where so prohibited by Applicable Law, immediately notify the disclosing Party and disclose only to the extent strictly mandated).

14.2. The provisions of this clause shall survive this Agreement and the Parties shall remain bound by the provisions of this clause during the tenure of this Agreement and for a period not less than **three (3) years** following the expiry or termination of this Agreement, howsoever occurring.

15. UTMOST GOOD FAITH

Each Party understands that by virtue of this Agreement, the position of each Party to the other is that of trust and accordingly pledges to demonstrate utmost good faith throughout the duration of this Agreement.

16. TERMINATION

16.1. Subject to Clause 16.3 and 16.4, either Party shall be entitled to terminate this Agreement where the other Party materially violates or breaches, or materially fails to fully and completely observe, keep, satisfy, perform and comply with, any agreement, term, covenant, condition, requirement, restriction or provision of this Agreement, and such Party does not cure such violation, breach or failure within ninety (90) days after the other Party gives the defaulting Party a written notice of such violation, breach or



failure, or, if such violation, breach or failure is incapable of being cured within ninety (90) days.

- 16.2. Subject to Clauses 16.3, 16.4 and 16.5, either Party shall be entitled to terminate this Agreement after the Lock-In-Period by giving the other party at least **twelve (12) months'** prior written notice. If notice is so given, this Agreement shall terminate upon the expiration of the specified period.
- 16.3. Notwithstanding any provisions of this Agreement, IHS shall be entitled to manage and maintain the Hub until the expiration of the Specified Period.
- 16.4. The termination of this Agreement shall not be interpreted to mean the liquidation of the Project Company.
- 16.5. In the event KWSG or the Project Company takes any steps (in the reasonable determination of IHS) to restrict, frustrate or determine the exclusive and indefeasible right conferred on IHS under Clause 4.31 to manage and maintain the Hub for the duration of the Specified Period (including the revocation of title to any portion of the Project Land or restriction of access to the Hub) and IHS decides to surrender its rights in this respect by notice to KWSG and the Project Company, the KWSG shall (notwithstanding any provision in this Agreement or the constitutional documents of the Project Company) refund to IHS the Hub Construction Cost in the sum of **₦2,000,000,000.00 (Two Billion Naira)** together with the amounts contributed by IHS under clause 4.35 in connection with the Management Budget for the period from the Effective Date leading to the date of such notice of surrender.

17. NOTICES

- 17.1. Any notice required under this Agreement must be made in writing (which may include email) and in English language, and delivered by hand, email, registered post, or courier using an internationally recognized courier company, to the addresses stated below.

Each Party shall notify the other Party of any changes to its details as set out in this clause from time to time:

IHS (Nigeria) Limited:

Chief Operating Officer

Address: Plot 934, Idejo Street, Victoria-Island, Lagos State, Nigeria

Email: leg_corporatecommercial.ng@ihstowers.com

Kwara State Government

represented by the Managing director of Ilorin Innovation Hub

Address: Ahmadu Bello Way, G.R.A Ilorin, Kwara State, Nigeria

Email: t.kolawole@kwarastate.gov.ng

- 17.2. A notice shall be effective upon receipt and shall be deemed to have been received (i) at the time of delivery, if delivered by hand, registered post or courier or (ii) at the time of transmission, if delivered by email, to the extent no delivery failure notification is received by the sender within **twenty-four (24) hours** of such transmission.

18. ISO 26000 DECLARATION

IHS recognizes ISO 26000 Social Responsibility Guidance Standard as a reference document for the implementation of its obligations under this Agreement and further emphasizes that it is actively working to improve the environment and provide sustainable solutions to all relevant issues under this Agreement.



19. MISCELLANEOUS PROVISIONS

- 19.1. This Agreement supersedes all previous communications, transactions, and undertakings, whether oral or written, and constitutes the sole and entire agreement between the Parties concerning the Project and may not be amended except by a written document agreed and executed by both Parties hereto. Any amendment to this Agreement will not be binding on the Parties unless set out in writing, expressed to amend, or supplement this Agreement and signed by both Parties.
- 19.2. If, at any time, any provision of this Agreement is or becomes illegal, invalid or unenforceable in any respect under any jurisdiction, neither the legality, validity or enforceability of the remaining provisions nor the legality, validity or enforceability of such provision under any other jurisdiction will in any way be affected or impaired.
- 19.3. No failure to exercise, or any delay in exercising, on the part of any Party, any right or remedy under this Agreement will operate as a waiver, neither will any single or partial exercise of any right or remedy prevent any further or the exercise of any other right or remedy. The rights and remedies provided in this Agreement are not exclusive of any rights or remedies provided by law and same may only be waived in writing and specifically.
- 19.4. Each Party will be fully responsible for its actions or activities in relation to the Project; this includes being responsible for the actions or omissions of their respective staff, consultants, and other personnel and contractors. For the avoidance of doubt, in no event shall either Party be liable to the other Party for indirect or consequential losses or damages.
- 19.5. The costs incurred in the negotiation, preparation, and execution of this Agreement, including attorneys' fees, shall be borne solely by the Party incurring such costs.
- 19.6. Each Party confirms that (a) it has data protection policies in place that meets all data protection standards and legal requirements applicable to it, and (b) it will apply such policies in the performance of the activities contemplated under this Agreement. The Parties do not intend to share any personal data with each other; if the Parties decide to share any personal data with each other, they will agree on any additional data protection provisions necessary for such data sharing and set those out in an amendment to this Agreement.
- 19.7. Each Party will retain all ownership interest in its intellectual property that existed prior to this Agreement or was developed by such Party independently of the Agreement, including any updates, improvements or derivatives of such intellectual property that are developed during the course of the Project (collectively, "**Pre-Existing Intellectual Property**"), and the other Party will not claim any ownership interest in such Pre-Existing Intellectual Property. Except as otherwise expressly agreed in writing, IHS shall own all interest in any intellectual property (including, but not limited to, slogans, images, and designs) developed by it, on its own or jointly with the other Party, as part of the Project (collectively, "**IHS Intellectual Property**"), and the other Party will not claim any ownership interest in such IHS Intellectual Property.

20. COUNTERPARTS

This Agreement may be executed in any number of counterparts, each of which shall be deemed an original, but all such counterparts shall together constitute one and the same instrument.

(signature page follows)



IN WITNESS WHEREOF the Parties have caused this Agreement to be signed in the manner hereinafter appearing the day and year first above written.

SIGNED, SEALED AND DELIVERED BY
Title: The Managing Director, Ilorin Innovation Hub

(Temi Kolawole)

For and on behalf of the Kwara State Government

Signature: _____

Date: May 2, 2025 _____

In the presence of:

Name Zumah Yahaya _____

Address _____

Designation Director Programs _____

Signature _____

Date May 2, 2025 _____

SIGNED FOR AND ON BEHALF OF IHS (NIGERIA) LIMITED:

Authorised Signatory
Name: Kazeem Oladepo

Authorised Signatory
Name: Yemisi Diya-Salawu

SCHEDULE 1

OVERVIEW AND SPECIFICATIONS OF THE HUB

1. INTRODUCTION

The Hub is a pioneering initiative aimed at transforming Kwara State into a thriving center for technology, entrepreneurship, and innovation. As a state-of-the-art facility, the Hub is designed to provide an inspiring environment for creative minds, startups, and established businesses to collaborate, innovate, and grow. It is located along Ahmadu Bello Way, beside the prestigious Kwara Hotel, in the heart of GRA in Ilorin, Kwara State, Nigeria.

The architectural and engineering aspects of the Hub have been meticulously planned to support its mission of fostering sustainable technological advancement and economic growth. This schedule provides a detailed overview of the building's infrastructure, including its architectural layout, electrical and mechanical systems, electronic and IT infrastructure, security measures, and support facilities. Each of these components shall be carefully integrated to ensure that the Hub operates efficiently, sustainably, and securely, offering a conducive space for innovation and creativity.

The building complex consists of:

- a. One (1) main building with two floors - ground floor (2211 sqm) and first floor (714.86 sqm) amounting to a total of 2925.86 sqm;
- b. Two (2) gate houses (in and out);
- c. Four (4) utility buildings with three of the buildings being used for maintenance, water treatment and generator.

2. PROJECT ARCHITECTURAL DESCRIPTION

2.1. Total capacity

The Hub has a total capacity of seven hundred (700) people.

2.2. Conference rooms/meeting rooms

2.2.1. Main hall

The main hall at the Hub is a versatile space designed for flexible use, accommodating up to three hundred (300) persons. It can be utilized in its entirety for large events or divided into two separate sections for smaller gatherings. This adaptability ensures the hall can host a wide range of functions, from full-capacity conferences to more intimate meetings or workshops, making it an ideal venue for diverse professional events.

2.2.2. Seminar hall

The Seminar hall at the Hub is designed for workshops, seminars, and smaller conferences, accommodating up to eighty-four (84) attendees. The space shall offer flexible seating arrangements, modern audiovisual equipment, and high-speed internet, making it ideal for a variety of professional gatherings. Its intimate setting and convenient location within the Hub shall provide a conducive environment for focused, interactive sessions.

Both halls shall have wooden step seating and open space for chair arrangement.

2.2.3. Meeting Spaces

The Hub has one (1) main 11-seater conference/meeting room and three (3) open meeting areas in the facility.

3. ELECTRICAL SYSTEMS DESCRIPTION

3.1. Transformer capacity

500 kVA.

3.2. Generator capacity

500 kVA.

3.3. Solar energy system

The Hub shall be powered by a 350kW solar energy system, coupled with a 559kWh battery storage solution. This setup will ensure a reliable, grid-independent power supply, capable of sustaining over 6000 battery cycles at 80% depth of discharge (DoD). The advanced battery management system (BMS) will play a crucial role in optimizing battery performance, ensuring efficient energy use, and prolonging battery life.

In addition to its robust performance, the solar battery system shall be equipped with comprehensive safety features, including state-of-the-art fire suppression and cooling mechanisms. These safety measures are designed to maintain optimal operating conditions, protecting both the equipment and the facility, and ensuring uninterrupted power during outages or peak usage periods.

The 350KW/559KWh solar energy system shall consist of the following:

- a. 631 x 555W (mono) solar panels
- b. 16 x 51.2V lithium iron phosphate batteries

3.4. Light emitting diode (LED) screens specifications

The Hub shall be equipped with a high-performance LED screen system, designed to provide clear, high-definition visual displays for presentations, events, and collaborative work throughout the facility. These LED panels are installed in key areas, including the multipurpose hall, conference hall, and lobby/reception area, ensuring maximum visibility and enhancing the user experience during various activities.

3.4.1. Key elements and specifications of the LED screen system include:

- a. **24.5 sqm LED screen** (7x3.5 meters) for large-scale displays, composed of 98 panels. This screen is ideal for use in the multipurpose hall, supporting presentations and large events.
- b. **15 sqm LED screen** (5x3 meters), made up of 60 panels, offering flexible use for mid-sized spaces such as the conference hall.
- c. **7 sqm LED screen** (3.5x2 meters), consisting of 28 panels, strategically placed in the lobby/reception area for welcoming visitors and displaying key information.
- d. **Pixel pitch:** 3.91mm, providing a fine resolution that ensures sharp, detailed visuals even at close viewing distances, suitable for high-quality video and image displays.
- e. **Panel size and weight:** Each panel measures 500x500mm and weighs 4.2 kg, allowing for a modular and scalable installation that can be easily configured based on the specific requirements of the space.
- f. **Connectivity:** The system includes SDI/HDMI inputs for seamless integration with various media sources, ensuring flexibility in presentations and content sharing.



- g. **Power and signal cables:** The installation includes all necessary power and signal cables between panels, ensuring smooth operation and minimal setup complexity.
- h. **Video processor:** The system is supported by a video processor that enhances the quality of content displayed and enables seamless transitions between different media inputs.

4. MECHANICAL SYSTEMS DESCRIPTION

4.1. Cooling systems

The Hub shall feature a Samsung commercial air conditioning (CAC) system, utilizing a hybrid setup of ceiling cassette and ceiling-concealed units. This system shall ensure efficient and even cooling across all spaces, maintaining a comfortable environment for both large events and smaller gatherings. The following cooling units shall be installed within the facility:

- a. Eight (8) units of 10HP HSP ducted split air conditioners.
- b. Fourteen (14) units of 4HP 360 cassette split air conditioners.
- c. Three (3) units of 4-way 2HP cassette split air conditioners.
- d. One hundred and four (104) units of 4-way 2.5 HP cassette split air conditioners.

5. ELECTRONIC/IT SYSTEMS DESCRIPTION

5.1. Electrical system capacity

The electrical system at the Hub is designed for efficiency and reliability, comprising a comprehensive lighting, power, and socket outlet layout. This system shall support the building's HVAC and extra low voltage systems, all connected to a 500 kVA, 11/0.400 kV transformer and integrated with the solar energy system. This hybrid configuration ensures consistent and sustainable power distribution, enabling smooth operation of all electrical components, from basic lighting to advanced technological systems.

5.2. Data and voice networking system

The Hub shall be equipped with a robust data and voice networking infrastructure designed for seamless communication and connectivity. The data and voice networking system includes the following:

- a. One (1) Panasonic hybrid IP PBX unit, supporting advanced telephone control and integration with the Hub's broader data network.
- b. Three (3) 48-port CAT6 Cisco Gigabit switches for efficient data and voice transmission
- c. Three (3) CAT6 data patch panels which ensures high-speed connections across all office spaces.
- d. Seventy-nine (79) RJ45 data/telephone sockets for distributed connectivity.
- e. One (1) Cisco integrated service router for stable internet access.
- f. Seventy-seven (77) CAT6 voice patch cords for voice transmission.

This comprehensive setup enables fast, reliable communication for both voice and data, supporting the needs of a dynamic, tech-driven environment.

5.3. Wireless LAN system

Designed for maximum coverage and high performance, the wireless LAN system utilizes long-range dual-band wireless access points from Ubiquiti and EnGenius. These access points shall be strategically placed to provide seamless Wi-Fi connectivity throughout the building, ensuring fast, reliable internet access. Managed through an intelligent cloud gateway, the system allows for efficient network management,

delivering robust performance for large numbers of users and devices operating simultaneously.

Key elements of the system include:

- a. Ten (10) dual-band wireless access points (Ubiquiti/EnGenius) for wide coverage.
- b. One (1) cloud-managed wireless controller for centralized management.
- c. One (1) dual-band intelligent cloud gateway to ensure optimal network performance.
- d. Two (2) Cisco 48-port gigabit switches for seamless data transmission.
- e. One (1) 42U data rack with power distribution units (PDUs) for structured cabling and equipment housing.

5.4. Public address system

The Hub shall be equipped with an advanced public address system designed for efficient communication across the facility. The system includes an 8x16 audio matrix with zone paging capabilities, built-in MP3 and CD players, and a gooseneck microphone for announcements. It also features multi-zone amplifiers and strategically placed ceiling speakers to ensure clear audio coverage in all areas. This system not only supports day-to-day announcements but also integrates with the fire alarm system for emergency evacuations, providing a reliable communication tool throughout the building.

Key elements of the system include:

- a. One (1) T-6600 8x16 audio matrix with zone paging capabilities.
- b. One (1) RMS multizone power amplifier for clear and distributed sound.
- c. Forty-three (43) ceiling speakers (29 CP-6 and 14 CP-10) for optimal sound coverage.
- d. One (1) T-6223(A) multi-voice evacuation panel with built-in MP3 player for emergency broadcasts.
- e. Two (2) wireless microphones for flexibility in announcements.
- f. Two (2) microphone socket outlets.

6. SAFETY & SECURITY SYSTEMS DESCRIPTION

6.1. Access control systems

The Hub shall be secured with a comprehensive Salto KS access control system, providing cloud-based management and real-time monitoring of all access points throughout the facility. The system integrates seamlessly with Spacebring software, enabling advanced functionalities such as mobile access, user management, and location-based control, while ensuring that only authorized personnel have access to specific areas within the Hub.

Spacebring software further enhances the system with features like mobile app access, meeting room display modes, and visitor management. This makes the system not only secure but also flexible, ideal for managing shared spaces and multiple users efficiently.

Key elements of the system include:

- a. Twenty-seven (27) Salto KS mini European locks (XS4 mini escutcheon) for secure access control throughout the building.
- b. Three (3) BLUEnet door controllers to manage multiple doorways seamlessly.
- c. Three (3) panel XS readers for turnstiles and additional entry points, equipped with MIFARE DESFire, Bluetooth LE, and HSE technology.

- d. Ten (10) wireless nodes to extend and optimize wireless access control.
- e. Spacebring SaaS platform for managing 150 monthly active users with mobile app integration for Android, iOS, and web-based access.
- f. Two (2) managed locations for multi-location control and visitor display modes;
- g. Three (3) onboarding support sessions for smooth implementation and operation.

6.2. CCTV/Surveillance systems

A sophisticated IP CCTV system from HIKVISION shall be installed to provide comprehensive surveillance across the facility. It features high-resolution fixed and dome cameras equipped with tamper-resistant housing, 350-degree view angles, and power over ethernet (PoE) technology. It also includes a 32-channel 4K NVR with 16TB of storage which supports multi-channel playback and continuous recording. The strategic placement of 42-inch LED monitors will ensure real-time monitoring, while a 3kVA UPS will guarantee uninterrupted operation, enhancing security throughout the Hub.

Key elements of the system include:

- a. Two (2) Hikvision PoE fixed internet cameras with tamper-resistant housing.
- b. Twenty-two (22) Hikvision PoE dome internet cameras for complete coverage.
- c. One (1) 32-channel 4K NVR with 16TB HDD for multi-channel recording and playback.
- d. Two (2) 24-port PoE managed gigabit switches for data transmission.
- e. Three (3) 42-inch LED wall-mounted monitors for real-time monitoring.
- f. One (1) 3kVA UPS for uninterrupted surveillance power.

6.3. Fire alarm systems

Safety at the Hub will be reinforced with a cutting-edge fire alarm system. The setup shall include a 4-loop addressable fire alarm panel, backed by a trickle charger and batteries for continuous operation. Smoke and heat detectors shall be strategically placed alongside manual call points and loop-powered strobe sounders. In the event of an emergency, the system will trigger both visual and audible alarms, ensuring a rapid response and safe evacuation from the building.

Key elements of the system include:

- a. One (1) compact 4-loop addressable fire alarm panel with trickle charger and batteries.
- b. Thirty-eight (38) addressable optical smoke detectors for early fire detection.
- c. Two (2) rate-of-rise heat detectors for temperature-based fire detection.
- d. Eleven (11) loop-powered strobe sounders for visual and audible fire alarms.
- e. One (1) addressable external horn (master blaster) for loud external alerts.
- f. Eleven (11) manual call points with resettable keys for manual activation of alarms.

7. SUPPORT INFRASTRUCTURE SYSTEM DESCRIPTION

7.1. Water treatment system

A 5.0m³ packaged water treatment plant shall be installed to supply a seven thousand five hundred (7,500) litre overhead water tank, which will service the main building and other ancillary units.



8. **PARKING**

8.1. **Parking capacity**

The premises of the hub have seventy-four (74) designated parking spaces, excluding those along the inner roads.